It is, however, when such pursuit becomes obsessive that stalking becomes a menace. Driven by a deluded sense of romantic or sexual entitlement, the stalker seems unable to accept rejection. Showing little regard for the law, he or she then makes repeated attempts to contact the victim to gain control over them or with the motive of payback.

"The idea of consent," says feminist activist Kavita Krishnan, "is still not properly understood in Indian society. Often men feel women are interested but too shy to say yes, a misconception that is a result of Indian movie plots or songs where men are often following reluctant women." Lines like '*Tu haan kar ya na kar tu hai meri Kiran*', in a hit number from the 1993 psychological thriller *Darr*, are an example of this cultural pathology. "There are nuances needed to distinguish between someone who is genuinely not interested and someone who is playing coy. Not being able to understand or respect these nuances can result in dangerous situations where a person is imposing unwanted attention on someone else—be it through stalking, sexual assault or other forms of intrusive behaviour," adds Krishnan.

Dr Basudeb Prasad, director of the Central Institute of Psychiatry in Ranchi, believes what stalkers have in common is a complete disregard of social norms. "They get a kick out of breaking rules," he says. "They justify what they do and call themselves victims."

WHAT THE NUMBERS SAY

What is scary is that the NCRB numbers could be telling only half the story. Though the report says 9,285 stalking cases were registered in 2021, it also maintains that as many as 4,890 stalking cases from previous years are still pending investigation. The police thus had 14,175 cases to investigate at the beginning of 2022. The number at the trial level is even bigger. There were 39,368 stalking cases pending in courts. Of these, 31,194 are from previous years. When it comes to court disposal, the NCRB report says 358 cases from the previous year and only 45 cases out of the total of 403 registered this year resulted in convictions. The number of cases acquitted is 911, more than double of total convictions. Additionally, as many as 621 cases have been settled out of court too.

And these numbers, admits a senior IPS officer in Jharkhand, could well be on the conservative side. "Social stigma, apprehension of vengeance, or non-serious response from authorities are just a few of the reasons why women or their family members don't report stalkers. They report only when they realise the issue has become too hard for them to handle at the social level," he says. In 2021, Maharashtra recorded the highest number of stalking cases (2,131), followed by Telangana (1,265), Andhra Pradesh (1,185) and Madhya Pradesh (1,072).

The alarming rise in the number of stalking and cyberstalking cases suggests that the authorities need to take a hard look at the law and its implementation. India did not have a stalking-specific rule till the Criminal Law (Amendment) Act, 2013, which came into force in the aftermath of the infamous Nirbhaya incident when a young woman died after being brutally gang-raped in December 2012. The law makes stalking a criminal offence punishable by a three-year jail term, which goes up to five years for a second conviction for the same offence.

But what differentiates a stalker from a harmless Romeo? According to Section 354D of the Indian Penal Code (IPC), any person who follows women and contacts, or attempts to contact, to foster personal interaction repeatedly despite a clear indication of disinterest by such woman is a stalker. The crime also includes following or monitoring the activities of a woman on the internet (covered under Section 67 & 67A of the IT Act, 2000). The only exception is if a woman has been pursued for prevention or detection of crime or in accordance with law. Clearly, only the law enforcement authorities can meet the exception criteria and only if they have reasonable cause.

ARE YOU BEING STALKED? SIGNS TO LOOK OUT FOR



RED FLAGS

- Stalkers call their victims and send texts and messages multiple times a day and comment a lot on their social media posts that may or may not be threatening
- They keep asking about who their victims were with or where they were
- They try getting details about the victim through friends, family members, coworkers or acquaintances
- They may hack into their victim's email, social media or other accounts
- They may use fake profiles to contact the victim after they have been blocked on their personal account
- They may spread rumours, online or in person
- They show up unannounced and give unwanted gifts

WHAT TO DO

- Just say no, but do not debate or argue with them
- Stalkers would pretend to be shocked at your reaction and try to convince you that you are being unreasonable. Don't fall for these tricks
- Be wary, keep a record of their abnormal behaviour, report to parents, friends and also to the police